



CHAPTER xxvi.

An Act to make provision for the abandonment of the tramways in the boroughs of Dewsbury and Ossett worked by the National Electric Construction Company Limited to provide for the running of public service vehicles in substitution therefor and for other purposes.

A.D. 1933.

[28th June 1933.]

WHEREAS by the Dewsbury Corporation Tramways Order 1904 (which was scheduled to and confirmed by the Tramways Orders Confirmation (No. 2) Act 1904) as amended by the Dewsbury Corporation Tramways Order 1906 (which was scheduled to and confirmed by the Tramways Orders Confirmation Act 1906) the mayor aldermen and burgesses of the county borough of Dewsbury (in this Act referred to as "the Dewsbury Corporation") were empowered to construct and maintain certain tramways within the borough of Dewsbury as then constituted and a portion of tramway numbered 1 by that Order authorised was duly constructed by the Dewsbury Corporation and is now being worked as hereinafter mentioned but the remainder of the tramways numbered 1 and those numbered 2 and 3 have not been constructed :

And whereas by the Soothill Nether Urban District Tramways Act 1904 the urban district council of Soothill Nether were empowered to construct and maintain certain tramways within their district and the tramways

A.D. 1933. numbered 1A 2 3 and 5 were wholly and the tramway
— numbered 4 was partly constructed and such tramways
 are now being worked as hereinafter mentioned but the
 remainder of the tramway numbered 4 and the tramway
 numbered 6 have not been constructed :

And whereas by the Ossett Corporation Tramways Order 1904 (which was scheduled to and confirmed by the Tramways Orders Confirmation (No. 2) Act 1904) as amended by the Ossett Corporation Tramways Order 1906 (which was scheduled to and confirmed by the Tramways Orders Confirmation Act 1906) the mayor aldermen and burgesses of the borough of Ossett (in this Act referred to as "the Ossett Corporation") were authorised to construct and maintain certain tramways in the borough of Ossett and the tramway therein numbered 1 has been wholly constructed and is now being operated as hereinafter mentioned but the tramways numbered 2 and 3 have not been constructed :

And whereas by an agreement made the nineteenth day of April one thousand nine hundred and nine between the Dewsbury Corporation of the one part and the National Electric Construction Company Limited (in this Act referred to as "the Company") of the other part the Company were required for a period ending on the thirteenth day of November one thousand nine hundred and fifty to work use maintain and manage the tramways constructed by the Dewsbury Corporation under the provisions of the Dewsbury Corporation Tramways Orders 1904 and 1906 and during the said term to pay to the Dewsbury Corporation by way of rent half-yearly sums equal to the sums payable by the Dewsbury Corporation by way of interest and repayment of principal or contribution to sinking fund in respect of moneys borrowed by the Dewsbury Corporation for the purpose of repaying loans raised for the construction of the said tramways :

And whereas by a lease made the nineteenth day of April one thousand nine hundred and nine between the urban district council of Soothill Nether of the one part and the Company of the other part the tramways constructed by the said council under the provisions of the Soothill Nether Urban District Tramways Act 1904 were demised to the Company for the term of forty-two years expiring on the thirteenth day of November one thousand

nine hundred and fifty upon the terms of payment by the Company of rentals in the form of annuities equal to the sums payable by the said council by way of interest and repayment of principal in respect of moneys borrowed by the said council to defray the cost of constructing the said tramways and the execution of works of street improvement : A.D.1933.

And whereas by the Dewsbury (Extension) Order 1909 (which was scheduled to and confirmed by the Local Government Board's Provisional Orders Confirmation (No. 6) Act 1909) the then existing urban district of Soothill Nether was included in the borough of Dewsbury and thereupon the Dewsbury Corporation became the owners and lessors of the tramways demised by the said lease of the nineteenth day of April one thousand nine hundred and nine :

And whereas by an agreement made the thirty-first day of July one thousand nine hundred and nine between the Ossett Corporation of the one part and the Company of the other part the Company were required for the period of forty-two years expiring on the thirteenth day of November one thousand nine hundred and fifty to work use maintain and manage the tramways constructed by the Ossett Corporation under the Ossett Corporation Tramways Orders 1904 and 1906 and during the said term to pay to the Ossett Corporation by way of rent half-yearly sums equal to the sums payable by the Ossett Corporation by way of interest and repayment of principal or contribution to sinking fund in respect of moneys borrowed by the Ossett Corporation for the purpose of repaying loans raised for the construction of the said tramways :

And whereas the whole of the hereinbefore recited tramways which are now situate within the county borough of Dewsbury and the borough of Ossett are being operated as one system by the Company by means of electricity supplied on the overhead system :

And whereas it is expedient that the Company be empowered subject to the provisions of this Act to abandon the whole of the said tramways and that provision be made for the running of public service vehicles in substitution therefor :

And whereas it is expedient that the other provisions of this Act be enacted :

[Ch. xxvi.] *Dewsbury and* [23 & 24 GEO. 5.]
Ossett Passenger Transport Act, 1933.

A.D. 1933.

— And whereas the purposes of this Act cannot be effected without the authority of Parliament :

May it therefore please your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows :—

Short title.

1. This Act may be cited as the Dewsbury and Ossett Passenger Transport Act 1933.

Interpretation.

2. In this Act the following words and expressions shall unless the context otherwise requires have the respective meanings hereinafter mentioned (that is to say) :—

“ The Company ” means the National Electric Construction Company Limited ;

“ The Dewsbury Corporation ” and “ the Ossett Corporation ” mean the mayor aldermen and burgesses of the county borough of Dewsbury and the mayor aldermen and burgesses of the borough of Ossett respectively ;

“ The local authorities ” means the Dewsbury Corporation and the Ossett Corporation ;

“ The Dewsbury Orders ” means the Dewsbury Corporation Tramways Order 1904 the Dewsbury Corporation Tramways Order 1906 and the Soothill Nether Urban District Tramways Act 1904 ;

“ The Ossett Orders ” means the Ossett Corporation Tramways Order 1904 and the Ossett Corporation Tramways Order 1906 ;

“ The existing Orders ” means the Dewsbury Orders and the Ossett Orders ;

“ The Dewsbury tramways ” and “ the Ossett tramways ” mean the tramways authorised and constructed under the powers of the Dewsbury Orders and the Ossett Orders respectively and being at the passing of this Act in existence and worked ;

“ The existing tramways ” means the Dewsbury tramways and the Ossett tramways ;

“ The tramway leases ” means the hereinbefore recited working agreements dated the nineteenth day of April one thousand nine hundred and nine and the thirty-first day of July one thousand nine hundred and nine and the hereinbefore recited lease dated the nineteenth day of April one thousand nine hundred and nine; A.D. 1933.
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“ The date of abandonment ” means the date on which the abandonment of the existing tramways takes effect in pursuance of the consent of the Minister given under the section of this Act of which the marginal note is “ Abandonment of tramways ”;

“ Equipment ” means posts standards brackets cables wires works and apparatus forming part of or provided and used in connection with the existing tramways or any particular part thereof as the context may require but does not include the rails paving and paving setts thereof;

“ Public service vehicle ” has the same meaning as in the Road Traffic Act 1930;

“ Stage carriage ” has the meaning given to that expression by section 61 of the Road Traffic Act 1930;

“ Highway authority ” means with reference to any road or bridge with the immediate approaches thereto or any part thereof the authority company or person charged with or liable to contribute to the maintenance of such road or bridge with the immediate approaches thereto or any part thereof;

“ The scheduled agreement ” means the agreement made the twenty-fourth day of November one thousand nine hundred and thirty-two between the Company of the first part the Dewsbury Corporation of the second part and the Ossett Corporation of the third part which (as modified by an agreement made the seventh day of March one thousand nine hundred and thirty-three) is set forth in the schedule to this Act;

“ The Minister ” means the Minister of Transport.

A.D. 1933.

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Repeal of
powers &c.
as to non-
existing
tramways.

3. All powers obligations and liabilities of the local authorities with respect to the construction and working or otherwise relating to any of the tramways authorised by the existing Orders or any of them which have not yet been constructed are hereby repealed (whether or not any Order authorising the abandonment of any of such tramways has or has not been made before the passing of this Act) and all agreements between the Company and the local authorities or either of them or between any one or more of those bodies and any other company authority body or person whatsoever with respect to such tramways or any of them are hereby cancelled and annulled.

Abandon-
ment of
tramways.

4.—(1) The Company may at any time and from time to time apply to the Minister for his consent to the abandonment of the whole of the existing tramways and if the Dewsbury Corporation or the Ossett Corporation at any time serve notice on the Company requiring them so to do the Company shall within three months from the receipt of any such notice or notices apply to the Minister for his consent to the abandonment of such tramways.

(2) On any application being made under subsection (1) of this section the Minister may (subject to the provisions of subsection (3) hereof) give his consent to the abandonment of the existing tramways and shall in his consent prescribe a date which shall not (unless the Company otherwise agree) be earlier than six months from the giving of the consent on which such abandonment shall take effect.

(3) Before giving any consent under this section the Minister shall satisfy himself that the Company are running or are willing to commence on or before the date of abandonment to run and continue to run adequate and satisfactory services of stage carriages in substitution for services of tramcars on the existing tramways or that arrangements have been made by the Company for the running of such services by another company body or person on behalf of the Company.

(4) If and whenever any consent is given by the Minister under this section then as from the date of abandonment and notwithstanding anything in the existing Orders or in the tramway leases or any agreement

A.D. 1933. or other minimum periodical payment in respect of
— electricity so supplied shall cease and be determined as
from the date of abandonment.

Provisions
affecting
Dewsbury
tramways
consequent
on aban-
donment.

8. If under any consent given by the Minister under the section of this Act of which the marginal note is "Abandonment of tramways" the Dewsbury tramways are required to be abandoned then as from the date of abandonment and notwithstanding anything in the existing Orders and the Acts incorporated therewith or applicable thereto or in any other Act Order lease agreement or instrument relating to the Dewsbury tramways the following provisions shall have effect (that is to say) :—

- (1) The Dewsbury Corporation may and unless otherwise agreed with the highway authority shall within nine months from the date of abandonment take up and remove the Dewsbury tramways and the rails paving paving setts and equipment thereof and may appropriate use sell or otherwise dispose of any such rails paving paving setts and equipment so taken up and removed :
- (2) All powers liabilities and obligations conferred or imposed on the Dewsbury Corporation by the existing Orders and the enactments incorporated therewith or by any other Act or Order to work or run any services of carriages on or otherwise relating to the existing tramways shall cease and determine :
- (3) If the Dewsbury Corporation continue to be owners of a tramway undertaking the revenues thereof shall (to such extent as the Corporation may from time to time determine) cease to be charged under any statutory enactment relating to that undertaking with expenses incurred by them on or in connection with the maintenance and repair of the streets in which the Dewsbury tramways were situate but nothing in this paragraph shall relieve the Dewsbury Corporation from any liability attaching to them in respect of such maintenance and repair.

existing at the date of the passing of this Act and referring directly or indirectly to the Company or the existing tramways the Company shall discontinue the working of the tramways mentioned in the consent and the provisions of the succeeding sections of this Act shall so far as applicable have effect. A.D. 1933.
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5. If under any consent given by the Minister under the section of this Act of which the marginal note is "Abandonment of tramways" the existing tramways are required to be abandoned then as from the date of abandonment and notwithstanding anything in the existing Orders or in the tramway leases under which the existing tramways have been operated by the Company or in any other Act or Order lease agreement or instrument relating to the existing tramways all powers obligations and liabilities of the Company in relation to the existing tramways existing at the date of abandonment under or by virtue of such Orders Acts leases agreements or instruments relating in any way to the maintenance or any contribution to the maintenance of the existing tramways or of the rails paving paving setts and equipment thereof or of any part of the road in which those tramways rails paving paving setts and equipment are situate or to the taking of a supply of electricity for the purposes of the existing tramways and any and every liability and obligation imposed on the Company with respect to the taking up and removal of such equipment and rails paving and paving setts and the reinstatement of the carriageway or footpath in which the existing tramways and the equipment may be situate shall become and be wholly repealed and annulled. Cesser of
Company's
obligations
on aban-
donment
of existing
tramways.

6. As from the date of abandonment the tramway leases shall be cancelled and annulled except so far as may be necessary to secure the payment of any sums accrued due up to the date of abandonment. Cancell-
ation of
tramway
leases.

7. Where under the tramway leases or any agreement made before the passing of this Act between either of the local authorities and the Company the Company are or may be required to take a supply of electricity for the purposes of the existing tramways or any part thereof such obligation together with any obligation to pay to the local authorities any minimum annual sum Cesser of
obligations
to take
supplies of
electricity.

9. For the protection of the London Midland and Scottish Railway Company (in this section called "the railway company") the following provisions shall unless otherwise agreed between the Dewsbury Corporation and the railway company apply and have effect (that is to say):—

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 For protec-
 tion of
 London
 Midland and
 Scottish
 Railway
 Company.

- (1) On the taking up or removal by the Dewsbury Corporation under this Act of any rails paving paving setts or equipment from any bridge or road belonging to or maintainable by the railway company the Dewsbury Corporation shall make good all damage to any such bridge and restore the surface of any such road both to the reasonable satisfaction of the railway company :
- (2) The Dewsbury Corporation shall give to the railway company not less than fourteen days' previous notice in writing of their intention to carry out any such work as is referred to in subsection (1) of this section and shall state in such notice the place and time at which they propose to commence the work and the railway company may where reasonably necessary employ watchmen and inspectors to watch any of the works and operations of the Dewsbury Corporation :
- (3) Any difference which may arise between the Dewsbury Corporation and the railway company under the foregoing provisions of this section shall be referred to and determined on the application of either party by an engineer to be appointed as arbitrator (failing agreement) by the President of the Institution of Civil Engineers and subject thereto the provisions of the Arbitration Act 1889 shall apply to any such arbitration.

10. If under any consent given by the Minister under the section of this Act of which the marginal note is "Abandonment of tramways" the Ossett tramways are required to be abandoned then as from the date of abandonment and notwithstanding anything in the existing Orders and the Acts incorporated therewith or applicable thereto or in any other Act Order lease

Provisions
 affecting
 Ossett
 tramways
 consequent
 on aban-
 donment.

A.D. 1933. agreement or instrument relating to the Ossett tramways
— the following provisions shall have effect (that is to say) :—

(1) Subject to the provisions of subsection (5) of this section and except as may be otherwise agreed between the Ossett Corporation and any highway authority in pursuance of subsection (6) of this section the Ossett Corporation—

(i) shall within nine months from the date of abandonment or within such longer period as may be agreed between the Ossett Corporation and the highway authority concerned take up and remove the Ossett tramways and the rails paving and paving setts thereof and the equipment other than any underground cables wires works and apparatus; and

(ii) may within the said period of nine months or such longer period as aforesaid and if so required by the highway authority at any time after the expiration of nine months and before the expiration of one year from the date of abandonment shall within three months after being so required take up and remove any underground cables wires works and apparatus forming part of the equipment :

(2) Except as in this Act provided or as may be otherwise agreed between the Ossett Corporation and any highway authority concerned the Ossett Corporation shall as and when any part of the Ossett tramways and the rails paving paving setts and equipment thereof are taken up and removed under subsection (1) of this section fill in the ground and make good the surface of and restore to the reasonable satisfaction of the highway authority the portion of the carriageway or footpath disturbed by such taking up and removal to as good a condition as that in which it was before such rails paving paving setts and equipment were laid or placed therein and clear away all surplus paving metalling or other materials or rubbish occasioned by such work and in the meantime cause the

place where the carriageway or footpath is opened or broken up to be fenced and watched and properly lighted at night : A.D. 1933.

- (3) If the Ossett Corporation fail to comply with their obligations under paragraph (i) of subsection (1) of this section within the period of nine months from the date of abandonment or such longer period as may be agreed with the highway authority or fail to comply with their obligations under paragraph (ii) of that subsection within three months after being required by the highway authority so to comply or fail to comply with their obligations under subsection (2) of this section within the period of one month after the taking up of any part of the Ossett tramways or the rails paving paving setts or equipment thereof the highway authority may at any time after such respective periods themselves do the works and things necessary for complying with such obligations and the Ossett Corporation shall pay to the highway authority on demand the cost reasonably and properly incurred by them in so doing :
- (4) The Ossett Corporation may appropriate use sell or otherwise dispose of any rails paving paving setts and equipment taken up and removed by them under subsection (1) of this section :
- (5) Notwithstanding anything in the foregoing provisions of this section the Ossett Corporation may—
 - (a) with the approval of the highway authority concerned leave in the road and sell to the highway authority all or any part of the rails paving and paving setts of the abandoned tramways ;
 - (b) enter into and carry into effect agreements with any authorised undertakers (as defined by the Electricity (Supply) Act 1919) empowered to lay electric lines or cables in any road in which any part of the equipment may be laid or placed for the sale subject to the approval of the highway authority (which

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approval shall not be unreasonably withheld) of any part of the equipment and on the execution of any such agreement the part of the equipment comprised therein shall vest in such authorised undertakers as part of their undertaking subject to the provisions of any Act or Order which would have applied to such part of the equipment if it had been laid or placed in such road by the authorised undertakers and the Ossett Corporation shall cease to be under any obligation and shall not be required to take up and remove that part of the equipment:

- (6) The Ossett Corporation and any highway authority may enter into and carry into effect agreements for and with respect to the removal or non-removal of the Ossett tramways or any part thereof and the rails paving paving setts and equipment thereof and the reinstatement of the carriageway or footpath in which any such tramway rails paving paving setts or equipment is or are situate and for and with respect to any other of the purposes or provisions of this section :
- (7) All powers liabilities and obligations conferred or imposed on the Ossett Corporation by the existing Orders and the enactments incorporated therewith or by any other Act or Order to work or run any services of carriages on the existing tramways shall cease and determine :
- (8) If the Ossett Corporation continue to be owners of a tramway undertaking the revenues thereof shall (to such extent as the Corporation may from time to time determine) cease to be charged under any statutory enactment relating to that undertaking with expenses incurred by them on or in connection with the maintenance and repair of the streets in which the Ossett tramways were situate but nothing in this paragraph shall relieve the Ossett Corporation from any liability attaching to them in respect of such maintenance and repair :

- (9) If any difference shall arise under subsection (1) or subsection (3) of this section between the Ossett Corporation and any highway authority or under subsections (2) or (5) of this section as to whether any approval of any highway authority has been unreasonably withheld the difference shall on the application of any party thereto be referred to and determined by the Minister whose decision shall be final. A.D. 1933. —

11. For the protection of the county council of the west riding of Yorkshire (in this section referred to as "the county council") the following provisions shall have effect (unless otherwise agreed in writing between the county council and the Ossett Corporation) with reference to so much of the Ossett tramways as is situate on any county road (in this section referred to as "the tramway") (that is to say):— For protection of West Riding County Council.

- (1) In this section "the tramway track" means so much of the road whereon the tramway is laid as lies between the rails thereof and (where double lines are laid) the portion of the road between each set of rails and in every case so much of the road as extends eighteen inches beyond each outer rail:
- (2) The Ossett Corporation shall give notice to the county council of the intention of the Company to discontinue the running of cars upon the tramway and of the date of abandonment:
- (3) Within three months after the date of abandonment the Ossett Corporation shall pay to the county council the sum of seven hundred pounds in satisfaction of the liability of the Ossett Corporation respecting the restoration of the tramway track after the removal of the rails paving and paving setts and such portion of the equipment as is laid in the tramway track:

Provided that if in the opinion of the county surveyor any of the concrete forming the foundation of the tramway track is defective or unsuitable for use in the reconstruction of the road the Ossett Corporation shall pay to the county council in addition to the before-mentioned sum the cost (as certified by the

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county surveyor) incurred by the county council in taking out removing and carting away such defective or unsuitable material and in providing and laying suitable concrete in lieu thereof. The certificate of the county surveyor as to the defectiveness or unsuitability of the foundation material upon which the tramway track is constructed shall be final and conclusive :

- (4) The Ossett Corporation shall after the expiration of nine months from the date of abandonment proceed at their own expense to remove the said rails paving setts or material (other than the foundation material) and equipment upon receiving from the county surveyor at least one month's notice in writing requiring them to do so in such sections and in such manner as may be reasonably required from time to time by the said surveyor for the proper and reasonable conduct of the work of reconstruction of the road surface and shall proceed with the work as speedily as possible. The Ossett Corporation shall not commence any such work before receiving from the said surveyor the notice above mentioned. The rails tie bars and equipment and the setts or other surface material removed as aforesaid shall remain the property of the Ossett Corporation :
- (5) The county council shall at their own expense immediately after or at their option contemporaneously with the removal of the said rails surface material and equipment from the tramway track (or any section thereof as aforesaid) proceed to reconstruct in accordance with modern methods the portion of the road forming the tramway track :
- (6) In the event of the Ossett Corporation failing to commence the said work of removal in accordance with subsection (4) of this section or to proceed with and complete such work with reasonable expedition the county council may themselves carry out the work and the cost certified by the county surveyor to have been incurred by them in so doing shall be repaid to them by the Ossett Corporation.

12.—(1) Within one month after the date of A.D. 1933.
abandonment the Company shall pay—

- (a) to the Dewsbury Corporation the sum of eleven thousand four hundred and five pounds four shillings and ninepence;
(b) to the Ossett Corporation the sum of six thousand three hundred and sixteen pounds seventeen shillings and eightpence;
- Payments
by Com-
pany in
lieu of
rentals.

being the proportion of the original loans referred to in the tramway leases which on the thirty-first day of March one thousand nine hundred and thirty-three was not repaid (or had not on that date been accumulated or set aside for the repayment of such loans) after deducting in each case—

- (i) so much of any payments made by the Company under the tramway leases between the thirty-first day of March one thousand nine hundred and thirty-three and the date of the payment of the sums referred to in paragraphs (a) and (b) of this subsection as represents the repayment of principal or contribution to sinking funds; and
(ii) compound interest at three per centum per annum on—

First the sum of six thousand four hundred and ninety-seven pounds three shillings and tenpence (in the case of the Dewsbury Corporation) and the sum of sixteen thousand five hundred and thirty-nine pounds two shillings and fourpence (in the case of the Ossett Corporation) from the thirty-first day of March one thousand nine hundred and thirty-three to the date of the payment of the sums referred to in paragraphs (a) and (b) of this subsection; and

Secondly the amount of any payments (in respect of the repayment of principal or contribution to sinking fund referred to in paragraph (i) of this subsection) from the date of such payments to the date of the payment of the sums referred to in paragraphs (a) and (b) of this subsection.

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— Interest shall be calculated for the purposes of paragraph (ii) of this subsection with yearly rests at the thirty-first day of March in each year except in respect of any periods less than one year.

(2) Any dispute between the Company and either of the local authorities as to what sum is payable by the Company under subsection (1) of this section shall be referred to a single arbitrator to be agreed between the parties to the dispute or failing agreement to be appointed on the application of either party by the President of the Institute of Chartered Accountants in England and Wales and the provisions of the Arbitration Act 1889 shall apply to any reference under this subsection.

(3) The sums paid to the local authorities under subsection (1) of this section shall be treated as capital in the accounts of the local authorities and shall be applied in or towards the extinguishment of any loan raised by them for tramway purposes or in such other manner as may be approved by the Minister of Health.

(4) As from the date of abandonment or the thirteenth day of November one thousand nine hundred and thirty-eight (whichever may be the later) and until the thirty-first day of December one thousand nine hundred and fifty-five the Company shall pay to the local authorities the following sums (that is to say):—

To the Dewsbury Corporation	... £240 per annum
To the Ossett Corporation	... £160 per annum

The first of such payments shall be made on the thirty-first day of March or thirtieth day of September next following the date of abandonment or the said thirteenth day of November one thousand nine hundred and thirty-eight (whichever may be the later) and shall be a proportionate part calculated to such date succeeding payments shall be made on the thirty-first day of March and the thirtieth day of September in each year and the last of such payments (being one-quarter of the said sums) shall be made on the thirty-first day of December one thousand nine hundred and fifty-five. The said sums shall be paid to the credit of the general rate funds of the local authorities and may be applied to any purpose for which such funds are applicable.

13.—(1) The scheduled agreement is hereby confirmed and made binding on the parties thereto and due effect shall be given thereto accordingly. A.D. 1933.
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Confirmation of scheduled agreement.

(2) Notwithstanding anything in clause 23 of the scheduled agreement or in subsection (1) of this section all or any of the provisions of the scheduled agreement may be varied or superseded by an agreement entered into by all the parties to the scheduled agreement whether made under the powers conferred by the section of this Act of which the marginal note is “Agreements with local authorities” or otherwise.

14. If in pursuance of clause 22 of the scheduled agreement the local authorities shall give notice to the Company of their intention to purchase and shall purchase in accordance with the provisions of that clause the undertaking as defined in the clause as the purchaseable part of the undertaking each of the authorities so purchasing shall be deemed on the completion of the purchase to be operating under a local Act an omnibus undertaking in their borough and the provisions of Part V of the Road Traffic Act 1930 including any statutory extension of the powers thereby granted to local authorities shall apply to each of those authorities accordingly but nothing in this section shall prejudice or in any way affect the provisions contained in clause 6 of Part I of the agreement set out in the Second Schedule to the Yorkshire (Woollen District) Transport Act 1931. Powers of local authorities on purchase.

15. The Company on the one hand and the local authorities or either of them on the other hand may enter into and carry into effect agreements for and with respect to— Agreements with local authorities.

- (a) the running by the Company of services of stage carriages and other public service vehicles within the boroughs of the local authorities being parties to the agreement;
- (b) the user management and maintenance of all or any of such services;
- (c) the leasing user management and maintenance of lands depots buildings sheds and property in connection with any such services;
- (d) the supply and maintenance by any of the contracting parties during the continuance of any such agreement as aforesaid for the running

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of services of stage carriages or other public service vehicles of such vehicles and conveniences in connection therewith necessary for the purposes of the agreement;

- (e) the employment of officers and servants; and
- (f) the payment and apportionment of the fares charges and other revenues arising from and the expenses incurred in connection with the provision of any such services as aforesaid and the sharing of the profits or any part of the profits derived from those services.

For protection of
Yorkshire
Electric
Power
Company
and
Electrical
Distri-
bution of
Yorkshire
Limited.

16. For the protection of the Yorkshire Electric Power Company and Electrical Distribution of Yorkshire Limited (each of which is in this section referred to as "the undertakers") the following provisions shall unless otherwise agreed in writing between the Dewsbury Corporation or the Ossett Corporation on the one hand and the undertakers on the other hand apply and have effect :—

- (1) Nothing in this Act shall extend to or authorise any alteration in the position of or other interference with any main cable wire tube post pole or other work or apparatus whether laid placed or erected in upon over or under the surface of the ground (all of which are in this section referred to as "apparatus") of the undertakers except in accordance with and subject to the provisions of section 17 of the schedule to the Electric Lighting (Clauses) Act 1899 and that section shall apply to such alteration or interference as if all such apparatus as aforesaid were electric lines or works within the meaning thereof :
- (2) The provisions of any existing enactment which at the passing of this Act enures for the protection of the undertakers in relation to the existing tramways or any part thereof shall continue in force and enure for the protection of the undertakers in relation to the existing tramways until the date when the taking up and removal of the existing tramways shall be commenced :

- (3) If any injury shall be caused to any apparatus of the undertakers by reason of the taking up or removal of any of the existing tramways or of the rails paving paving setts or equipment thereof or the execution by the Dewsbury Corporation or the Ossett Corporation or any highway authority of any works for or in connection with such taking up or removal or for or in connection with the restoration of the portion of the carriageway or footpath disturbed by such taking up or removal the authority taking up or removing such tramway or executing such work shall bear and on demand repay to the undertakers the amount of the expense reasonably incurred by them in making good such injury and shall indemnify the undertakers against all claims demands costs charges and expenses arising out of such injury : A.D. 1933.
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- (4) If any interference shall be caused to any apparatus of the undertakers or to any private service line of any person supplied by the undertakers with electricity by reason of any of the operations referred to in subsection (3) of this section the authority carrying out such operations shall make full compensation to all parties for any loss or damage which they may sustain by reason of such interference :
- (5) If any interruption in the supply of electricity in or through any apparatus of the undertakers is caused by any such operations as aforesaid such authority shall be liable to a penalty not exceeding twenty pounds for every day upon which such supply shall be so interrupted :
- (6) Any difference which may arise between the undertakers and the Dewsbury Corporation or the Ossett Corporation or any other highway authority under this section shall be referred to and determined by an arbitrator to be agreed upon or failing agreement to be appointed on the application of either of the parties in difference (after notice in writing to the other of them) by the President of the Institution of Civil Engineers and subject as aforesaid the provisions of the Arbitration Act 1889 shall apply to any such reference and determination.

A.D. 1933.

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For pro-
tection of
Dewsbury
and Heck-
mondwike
Water-
works
Board.

17. For the protection of the Dewsbury and Heckmondwike Waterworks Board (in this section referred to as "the board") the following provisions shall unless otherwise agreed in writing between the board on the one hand and the Dewsbury Corporation or the Ossett Corporation on the other hand apply and have effect notwithstanding any other provision of this Act :—

(1) The provisions of any existing enactment which at the passing of this Act enures for the protection of the board as owners of their water undertaking in relation to the existing tramways or any part thereof shall continue in force and enure for the protection of the board as such owners in relation to the existing tramways until the date when the taking up and removal of the same or the rails paving and paving setts thereof shall be commenced. As from the date of such commencement the said provisions shall as regards the existing tramways so taken up and removed cease and determine :

(2) If any injury shall be caused to any main pipe valve syphon or other work or apparatus forming part of the water undertaking of the board by reason of the taking up or removal by the Dewsbury Corporation or the Ossett Corporation of the existing tramways or of the rails paving paving setts or equipment thereof or the execution by the Dewsbury Corporation or the Ossett Corporation of any works for or in connection with such taking up or removal or for or in connection with the restoration by the Dewsbury Corporation or the Ossett Corporation of the portion of the carriageway or footpath disturbed by such taking up or removal the Dewsbury Corporation or the Ossett Corporation shall bear and on demand repay to the board the amount of the expenses reasonably incurred by the board in making good such injury and shall indemnify the board against all claims demands costs charges and expenses arising out of such injury :

(3) Any difference which may arise between the board and the Dewsbury Corporation or the

Ossett Corporation under this section shall be referred to and settled by an arbitrator to be agreed upon between the parties to the difference or failing such agreement to be appointed on the application of either party after notice in writing to the other of them by the President of the Institution of Civil Engineers and subject as aforesaid the provisions of the Arbitration Act 1889 shall apply to any such reference and determination.

A.D. 1933.

18. In respect of the exercise of any powers or duties conferred or imposed on the Minister or the giving by him of any consents under this Act the provisions of Part I of the Board of Trade Arbitrations &c. Act 1874 shall apply as if the Minister were referred to therein in lieu of the Board of Trade and as if in section 4 of that Act the words "under the seal of the Minister of Transport" were substituted for the words "by writing under the hand of the President or of one of the secretaries of the Board."

Inquiries by
Minister.

19.—(1) The Company shall deliver to the Registrar of Companies a printed copy of this Act and he shall retain and register it. If such copy is not so delivered within three months from the passing of this Act the Company shall incur a penalty not exceeding two pounds for every day after the expiration of those three months during which the default continues and any director or manager of the Company who knowingly and wilfully authorises such default shall incur a like penalty.

Copy of
Act to be
registered.

(2) Every penalty under this section shall be recoverable summarily.

(3) There shall be paid to the registrar by the Company on such copy being registered the fee of five shillings.

20. Without prejudice to the generality of any repeal effected by the foregoing provisions of this Act if and when the whole of the existing tramways have been abandoned in pursuance of the section of this Act of which the marginal note is "Abandonment of tramways" and (so far as regards county roads in the borough of Ossett) the taking up of the abandoned tramways and the rails paving paving setts and equipment thereof in accordance with the provisions in that behalf

Repeal.

A.D. 1933. — contained in this Act shall have been duly carried out the following enactments shall be repealed (that is to say) :—

- (i) The Dewsbury Corporation Tramways Order 1904;
- (ii) The Soothill Nether Urban District Tramways Act 1904;
- (iii) The Dewsbury Corporation Tramways Order 1906;
- (iv) The Ossett Corporation Tramways Order 1904;
- (v) The Ossett Corporation Tramways Order 1906.

Saving for
Traffic Com-
missioners.

21. Nothing in this Act or in the scheduled agreement shall be in derogation of the powers of the Traffic Commissioners appointed under the Road Traffic Act 1930 for the Yorkshire traffic area and in particular nothing shall be deemed to require the said Commissioners to grant any licence for the purpose of enabling the Company to fulfil any duty or obligation placed upon them by this Act or the scheduled agreement.

Costs of
Act.

22. All costs charges and expenses of and incident to the preparing for obtaining and passing of this Act and otherwise in relation thereto shall be paid by the Company.

The SCHEDULE referred to in the
foregoing Act.

A.D. 1933.
—

AGREEMENT OF THE 24TH NOVEMBER 1932 AS MODIFIED
BY AN AGREEMENT OF THE 7TH MARCH 1933.

THIS AGREEMENT is made this twenty-fourth day of November 1932 between THE NATIONAL ELECTRIC CONSTRUCTION COMPANY LIMITED whose registered office is situate at 88 Kingsway in the county of London (hereinafter referred to as "the Company" which expression where the context so admits shall include their successors and assigns) of the first part THE MAYOR ALDERMEN AND BURGESSES OF THE COUNTY BOROUGH OF DEWSBURY (hereinafter referred to as "the Dewsbury Corporation") of the second part and THE MAYOR ALDERMEN AND BURGESSES OF THE BOROUGH OF OSSETT (hereinafter referred to as "the Ossett Corporation") of the third part.

WHEREAS the Dewsbury Corporation and the Ossett Corporation (hereinafter together referred to as "the local authorities") are the owners of certain tramways (situate within their respective boroughs) all of which tramways the Company are now operating under the provisions of a lease and certain working agreements :

And whereas to make provision for the moneys borrowed by the local authorities for defraying expenses incurred by them in connection with the tramways the Company under the said lease and working agreements have agreed to make contributions equivalent to the annual interest and sinking fund payments or instalments of principal and interest required in connection with such borrowed moneys :

And whereas the said tramways are now operated as one system by means of electricity supplied on the overhead system :

And whereas the Company intend to promote in the present session of Parliament a Bill to make provision as to the abandonment of the said tramways and to provide for the running of

[Ch. xxvi.] *Dewsbury and* [23 & 24 GEO. 5.]
Ossett Passenger Transport Act, 1933.

A.D. 1933. public service vehicles in substitution therefor and for other
— purposes :

And whereas it is intended that this agreement shall be confirmed and made binding upon the parties hereto by the Bill and that for such purpose a copy of this agreement shall be set out in a schedule to the Bill :

And whereas the local authorities have agreed not to oppose the said Bill in consideration of the Company's entering into such covenants and agreements as are hereinafter on the part of the Company contained :

Now this deed witnesseth and it is hereby agreed and declared by and between the Company on the one hand and the local authorities on the other hand as follows :—

Interpreta-
tion.

1. In this agreement the following expressions shall unless the context otherwise requires have the following meanings (that is to say) :—

“ The borough ” shall mean the county borough of Dewsbury or the borough of Ossett as the case may be as such boroughs respectively are at present constituted and the expression “ the boroughs ” shall have a corresponding meaning ;

“ The specified area ” means—

So much of the county borough of Dewsbury and the borough of Ossett as lies within an imaginary line commencing from the point at which the Headfield Junction branch of the London and North Eastern Railway crosses the river Calder thence in a northerly direction along the said railway to its junction with the Dewsbury and Batley branch railway of the said railway thence in a straight line to a point on the south-western side of Railway Street immediately opposite the junction of Rishworth Road with that street thence to the south-eastern corner of the Market Place at its junction with Long Causeway thence due north to the northern boundary of the market thence in an easterly direction along its northern boundary and the northern boundary of Wakefield Road to its junction with Bywell Road thence along the western boundary of Bywell Road to a point 450 yards to the north of the said junction thence in a straight line in an easterly direction to the point at which the boundary of the said county borough intersects the western boundary of the Chickenley Heath branch railway of the London and

North Eastern Railway thence proceeding in a straight line in continuation of such last-mentioned line for a distance of 1,000 yards thence in a straight line in a south-easterly direction to the eastern extremity of Paleside Farm buildings thence along the eastern or northern boundaries of Paleside Lane Dewsbury Road Dale Street Bank Street Queen Street and The Green to Storrs Hill thence in a straight line due west to the boundary of the said borough where it is intersected by the Lancashire and Yorkshire branch of the London Midland and Scottish Railway and the river Calder and thence in a northerly or westerly direction along the river Calder to the point of commencement;

A.D. 1933.
 —

“The tramways” means the tramways belonging to the local authorities and now operated by the Company under the provisions of a lease dated the 19th day of April 1909 and working agreements dated the 19th day of April 1909 and the 31st day of July 1909;

“The tramway leases” means the said lease dated the 19th day of April 1909 and the said working agreements dated the 19th day of April 1909 and the 31st day of July 1909;

“The Bill” means the Bill to be promoted by the Company in the present session of Parliament intituled “the Dewsbury and Ossett Passenger Transport Bill 1933”;

“The date of abandonment” means with respect to the tramways the date on which the abandonment thereof takes effect in pursuance of a consent of the Minister of Transport given under the provisions of the Bill;

“The said services” means the services of motor omnibuses for the time being and from time to time operated by or on behalf of the Company within or partly within the specified area or any part thereof;

“Lessees” means any company body or person with whom the Company may for the time being have entered into a working agreement under the provisions of clause 18 (Working agreements) of this agreement.

2. The Bill shall include all necessary and suitable provision for the abandonment of the tramways the cancellation and determination of the tramway leases the removal of the tramways and the apparatus and equipment connected therewith the restoration of the surface of the roads from which the tramways and such apparatus and equipment are removed and the cesser of any obligation on the part of the Company to take supplies of electricity from the local authorities for the purpose of working the tramways.

Abandon-
 ment of
 tramways.

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A.D. 1933.

—
 Payments
 by Company
 on abandon-
 ment of
 tramways.

3. The Bill shall include a provision requiring the Company within one month after the date of abandonment to pay to each of the local authorities—

- (a) A proportionate part of any rentals or payments payable under the tramway leases calculated up to the date of abandonment; and
- (b) Such proportion of the sums originally borrowed for the construction and equipment of the tramways as has not at the date of abandonment been repaid or provided for the purposes of repayment (in the case of moneys repayable by instalments of principal and interest or by way of annuity) or has not at that date been accumulated or set aside for the repayment of the debt (in the case of loans for the redemption of which a sinking fund has been formed).

Rentals to
 1955.

4. The Bill shall also include a provision requiring the Company as from the date of abandonment or the 13th day of November 1938 (whichever may be the later) and until the 31st day of December 1955 to pay to the local authorities by equal half-yearly payments on the 31st day of March and the 30th day of September in each year the following sums (that is to say) :—

To the Dewsbury Corporation	£240 per annum
To the Ossett Corporation	£160 per annum

the first of such payments to be a proportionate part for the period to the half-yearly date on which it is made and the last of such payments to be a quarterly sum to the 31st day of December 1955.

Local
 authorities
 not to
 oppose Bill.

5. The local authorities shall not nor shall either of them either directly or indirectly oppose the Bill but they and each of them shall at the expense of the Company do all such acts and things as they lawfully can or may and the Company may reasonably require in support of the Bill and to obtain the approval of Parliament to this agreement and its confirmation by the Bill in the present session.

Agreement
 to be
 scheduled
 to Bill.

6. This agreement shall be included in a schedule to the Bill and a clause shall be inserted in the Bill to provide for the confirmation of this agreement and to make it binding on the parties hereto.

Agreement
 conditional
 on Bill being
 passed.

7. This agreement is conditional upon its being approved by Parliament and confirmed in the present session subject to such modifications as Parliament may think fit to make herein

Provided that if either House of Parliament shall make any material alteration in this agreement and any of the parties hereto shall give notice in writing to the others before the Bill shall be read the third time in the second House to rescind this agreement then in that event or in the event of this agreement not being approved and confirmed as aforesaid during the present session this agreement and everything herein contained shall forthwith become void. A.D. 1933.
—

8.—(1) The local authorities hereby severally agree with the Company that if the tramways or any of them shall be abandoned pursuant to the provisions in that behalf contained or intended to be contained in the Bill the local authorities respectively shall perform and discharge all obligations and liabilities existing at the date of abandonment under the Bill or any order relating to the tramways so abandoned situate within their respective boroughs and the enactments incorporated therewith with respect to the removal of the tramways so abandoned and the rails paving paving setts and equipment thereof or the parts thereof situate within the respective boroughs and the reinstatement of the carriageway or footpath in which the tramways may be situate and shall keep the Company and their successors and assigns effectually indemnified from and against all actions proceedings costs claims damages and expenses whatsoever arising out of any failure on the part of the local authorities to perform or discharge the obligations and liabilities on their respective parts to be performed or discharged as aforesaid or any of them. Removal of
track and
restoration
of roads.

(2) All rails paving and paving setts and posts standards overhead and other equipment including underground cables wires works and apparatus forming part of or provided and used exclusively in connection with any of the tramways abandoned as aforesaid shall become the absolute property of the corporation in whose area the same may be situate and such corporation may appropriate use sell or otherwise dispose of the same.

9. As from the day following the date on which the Company shall discontinue the service of tramcars now operated by them upon the tramways the Company shall commence to operate or arrange for the operation of a service or services of motor omnibuses along the route of such tramway on which the service of tramcars shall have been discontinued as aforesaid. Omnibus
service to be
provided.

10. If either of the local authorities shall at any time during the continuance of this agreement by notice in writing require the Company to operate a service of motor omnibuses along any other route within the specified area in respect of which there is a reasonable prospect of a service being remunerative within a Additional
routes.

A.D. 1933. — reasonable period then the Company shall within 28 days of the receipt of such notice commence to operate or arrange for the operation of a service of motor omnibuses along the route specified in such notice :

Provided that this clause shall not apply (unless the Company otherwise agree) to the whole or any part of the following routes so long as they are operated by the Yorkshire (Woollen District) Electric Tramways Limited or the West Riding Automobile Company Limited (that is to say) :—

- (a) Owl Lane from Owlet Hall to Leeds Road and Leeds Road from Owl Lane to its junction with Dewsbury Road ;
- (b) Healey Road from The Green to the western extremity of the gasworks of the Ossett Corporation.

Unremunerative routes.

11. The Company shall be at liberty to cease to operate any service of omnibuses on any of the said routes or any part thereof (including any service operated pursuant to a notice given under clause 10 (Additional routes) hereof) if after three months' trial the receipts on such service shall be insufficient to cover the cost of working the service calculated in accordance with paragraph (4) of the schedule to this agreement or if after three months' trial there shall be no net profits in respect of the service as ascertained under paragraph (9) of the schedule to this agreement.

Services and fares.

12.—(1) As from the respective dates from which the Company are to commence to operate the said services the Company shall operate or arrange for the operation along each of the routes along which such services are to be operated respectively as aforesaid such a service of motor omnibuses as shall adequately provide for the reasonable requirements of the travelling public including such additional services as may from time to time be necessary upon special occasions or for special purposes such as theatrical performances concerts football matches and other like events Provided that the obligations imposed upon the Company by this subclause in regard to the provision of such additional services shall not be binding upon the Company if the acquisition or provision of additional omnibuses should be necessary in order to permit of their complying therewith.

(2) The Company shall not charge a fare exceeding one penny halfpenny per mile or fraction of a mile for any passenger travelling on any omnibus running on any of the said services and where in the opinion of the Company and the corporation concerned traffic conditions permit the Company shall institute penny stages.

(3) The Company shall issue return tickets at rates not exceeding one penny per mile or fraction of a mile available for

use on weekdays on the outward journey before the hour of 8.45 A.D. 1933.
in the morning and on the return journey on the same day after
the hour of 12 o'clock noon on any omnibus operated on any of
the said services and the Company shall so far as reasonably
practicable issue tickets at rates not exceeding one penny per mile
or fraction of a mile available for use on any omnibus operated
on any of the said services by artisans mechanics and daily
labourers regularly going to or returning from their work in the
ordinary course of their employment at hours at which return
tickets issued as aforesaid shall not be available.

13. Subject to clause 12 (Services and fares) of this agreement *Alteration*
and as hereinafter provided the Company shall notwithstanding *of services.*
anything herein contained from time to time and at all times
have full right and liberty to discontinue the operation or increase
or reduce the frequency of any of the said services or to alter the
route of any such services or otherwise modify the same or any of
them in such manner as the Company may in their absolute
discretion think fit Provided that except in accordance with
clause 11 (Unremunerative routes) of this agreement the Company
shall not without the consent of the local authorities or (in the
case of a service on a route situate entirely within so much of
either of the boroughs as is situate within the specified area) the
corporation of such borough (provided that such consent shall
not be unreasonably withheld) discontinue the operation or alter
the route of any service for the time being operated pursuant
to clause 9 (Omnibus service to be provided) of this agreement
or a notice given under clause 10 (Additional routes) of this
agreement.

14. The Company shall at their own expense provide and *Provision of*
maintain or arrange for the provision and maintenance of all *vehicles &c.*
motor omnibuses and other vehicles staff and workmen garage
accommodation and offices necessary for the operation of the
said services.

15. The Company shall at all times during the continuance *Type of*
of this agreement provide and use or arrange for the provision and *vehicles.*
use for the said services of motor omnibuses of a good serviceable
and up-to-date type and design and fitted with pneumatic tyres
and shall keep and maintain all motor omnibuses to be operated
by them under the provisions of this agreement in good and clean
condition and provided with all facilities which may be reasonably
required to ensure the safety and comfort of the passengers.

16. So long as the Company continue to carry out their *Licences.*
obligations under this agreement the local authorities and each
of them shall at the expense of the Company do all such acts and
things as they lawfully can or may and the Company may from
time to time reasonably require to support any application by

[Ch. xxvi.] *Dewsbury and* [23 & 24 GEO. 5.]
 Ossett Passenger Transport Act, 1933.

A.D. 1933. the Company for or otherwise to assist the Company or their lessees to obtain any licences which the Company or their lessees may from time to time require for the purposes of the said services.

Obligations
conditional
on licences
being
granted.

17. The obligations imposed upon the Company by clauses—

9 (Omnibus service to be provided)

10 (Additional routes) and

12 (Services and fares)

of this agreement shall be subject to and conditional upon all necessary licences which may from time to time be required being granted to them or to their lessees.

Working
agreements.

18. Notwithstanding anything in this agreement contained the Company shall be entitled to enter into and from time to time vary and to carry into effect agreements with any other company body or person for and with respect to—

- (a) the running by the lessees and the Company or either of them of services of stage carriages and other public services within the boroughs;
- (b) the user management and maintenance of such services;
- (c) the leasing user management and maintenance of lands buildings depots sheds and property in connection with such services;
- (d) the supply and maintenance of vehicles necessary for the purposes of the agreement;
- (e) the employment of officers and servants;
- (f) the payment and apportionment of the fares charges and other revenues arising from and the expenses incurred in connection with the provision of any such services and the sharing of the profits or any part of the profits derived from those services :

Provided that the Company shall not enter into any such agreement in respect of any period after the 1st day of January 1956 except with the consent of the local authorities which consent shall not be unreasonably withheld.

Local
authorities
not to
compete
with
Company.

19. During the continuance of this agreement and so long as the Company carry out their obligations hereunder neither of the local authorities shall under or by virtue of the powers conferred by Part V of the Road Traffic Act 1930 or otherwise operate or seek to obtain either directly or indirectly power or authority to establish or work tramways trolley vehicles motor omnibuses or other passenger-carrying vehicles or make

or carry into effect agreements for or otherwise seek to obtain any interest in the management working or maintenance of any such vehicles other than— A.D. 1933.
—

- (1) the omnibuses to be operated by the Company pursuant to this agreement; and
- (2) the omnibuses operated or to be operated by the Yorkshire (Woollen District) Electric Tramways Limited under and in pursuance of the agreement dated the 16th day of April 1931 set out in the Second Schedule to the Yorkshire (Woollen District) Transport Act 1931.

20. As from the 1st day of January 1956 the local authorities shall be entitled to share in the net profits of the omnibus undertaking of the Company as established and maintained under the provisions of this agreement and the Bill and the provisions contained in the schedule hereto shall apply and have effect. Participation in profits.

21. The Company shall not assign the benefit of this agreement (otherwise than for the purposes of or in connection with any scheme of reconstruction or amalgamation or the sale or transfer of their undertaking under the Bill as a whole) without the consent in writing of the local authorities which consent shall not be unreasonably withheld. Provided that nothing in this clause shall prejudice or interfere with the operation of clause 18 (Working agreements) of this agreement. Assignment.

22.—(1) Subject as hereinafter provided if the local authorities shall jointly give to the Company notice to determine this agreement on the 31st day of December 1955 or the 31st day of December in any subsequent twenty-fifth year pursuant to the power in that behalf conferred by clause 23 (Period of agreement) hereof or the Company shall at any time go into liquidation otherwise than for the purposes of amalgamation or reconstruction and each of the local authorities shall on the giving of such notice as aforesaid or within one month of the commencement of the winding up of the Company as the case may be give to the Company notice in writing of their desire to purchase such part of the Company's undertaking as is hereinafter more particularly described and referred to as "the purchaseable part of the undertaking" or if not later than one year before the expiration of this agreement each of the local authorities shall give to the Company a like notice then on the 31st day of December 1955 or on the 31st day of December in such subsequent twenty-fifth year or on the expiration of one month from the commencement of the winding up of the Company or the expiration of this agreement as the case may be (such 31st day of December or the date of the commencement of the winding up or the expiration of this part of this agreement being hereinafter referred to as Purchase of Company's undertaking.

A.D. 1933. “ the date of purchase ”) the Company shall sell and each of the
— local authorities shall jointly purchase so much of the purchaseable part of the undertaking as shall on the date of purchase be situate or carried on within so much of the specified area as is situate within their respective boroughs as constituted at the date of this agreement upon terms of paying the fair market value of each part of the undertaking as a going concern but without any addition in respect of compulsory purchase which value shall be determined in case of difference by arbitration in manner hereinafter provided and any question as to the portion of the Company's undertaking so purchaseable by the local authorities shall be determined by the arbitrator.

(2) The sum to be paid to the Company in respect of such purchase shall failing agreement be determined by one and the same arbitrator agreed or nominated under subclause (2) of clause 25 (Arbitration) of this agreement and in one and the same arbitration but the arbitrator shall by his award determine separately as respects each of the local authorities the value at the date of purchase of the portion of the purchaseable part of the undertaking to be purchased by each of the local authorities but so that the respective sums to be paid to the Company by each corporation shall together be equal to the fair market value at the date of purchase of the purchaseable part of the undertaking as a going concern but without any allowance for compulsory purchase.

(3) For the purposes of this clause the expression “ the purchaseable part of the undertaking ” shall mean (a) the goodwill or interest of the Company of or in each and every service which the Company shall on or immediately before the date of purchase be operating under the provisions of this agreement and (b) such estate or interest as the Company may then be entitled to sell and assign in any garage situate in or near either of the respective boroughs of the local authorities which shall then be used by the Company exclusively or mainly for the purposes of the services or parts of services aforesaid and (c) such of the omnibuses spare parts and other materials then belonging to the Company as may be agreed or in default of agreement as may be determined by the arbitrator to be necessary for the purposes of the services or parts of services aforesaid and (d) such rights powers and privileges as the Company may be entitled to exercise and enjoy under any agreement or agreements entered into pursuant to clause 18 (Working agreements) of this agreement in relation to the services or parts of services.

(4) In the event of the local authorities purchasing the purchaseable part of the undertaking under this clause the Company shall not operate any service or services of omnibuses

or other vehicles along the route of or otherwise in competition with any service or services operated by the local authorities or either of them along the route of any of the services or parts of services referred to in subclause (3) of this clause without the consent in writing of the local authorities or such one of them as shall be operating such service or services as aforesaid. Provided that a service operated by the Company along the route or any part of the route of any service provided by the local authorities or either of them shall not be deemed to be in competition with such services so long as the fares charged by the Company on their service in respect of the route or any part of the route of the service provided as aforesaid shall afford adequate protection to that service. And the local authorities and each of them shall not operate or become directly or indirectly interested in the operation of any service or services of omnibuses or other vehicles other than the services or parts of services referred to in subclause (3) of this clause along the route of or otherwise in competition with any service or services now or hereafter for the time being operated by or on behalf of the Company.

A.D. 1933.
—

23. This agreement shall come into force on the date on which the Bill shall receive the Royal Assent and shall remain in force thereafter until the 31st day of December 2029. Provided that if the local authorities shall be desirous of determining this agreement on the 31st day of December 1955 or on the 31st day of December in any subsequent twenty-fifth year and shall each at one and the same time give to the Company not less than one year's previous notice in writing in that behalf or if the Company shall at any time go into liquidation otherwise than for the purposes of amalgamation or reconstruction then subject and without prejudice to clause 22 (Purchase of Company's undertaking) of this agreement on the 31st day of December 1955 or on the 31st day of December in such subsequent twenty-fifth year or on the liquidation of the Company otherwise than for the purposes aforesaid as the case may be this agreement shall cease and determine but without prejudice to any claim by any of the parties in respect of any antecedent breach of any of the provisions herein contained.

Period of
agreement.

24.—(1) Nothing contained in this agreement shall be deemed to constitute a partnership between the local authorities and the Company.

Construction
of agree-
ment.

(2) This agreement shall be construed and have effect in all respects as if the several agreements and provisions herein contained so far as they relate respectively to any service or services operated or to be operated within or partly within either of the boroughs or any account or statement to be delivered or payment to be made or allowed in respect of any such service had been contained in a separate agreement or

A.D. 1933. instrument made between the Company on the one hand and
— the corporation of such borough on the other hand and accord-
 ingly the agreements on the part of the Company herein
 contained shall be enforceable by each of the local authorities so
 far as aforesaid but not further or otherwise.

Arbitration. 25.—(1) Any dispute difference or question arising between
 the Company and either of the local authorities relating to any
 account or statement delivered or to be delivered by or any
 payment or allowance to be made by or to the Company under
 the schedule to this agreement shall be referred to a single
 arbitrator to be agreed between the Company and the corporation
 concerned or failing agreement to be nominated on the application
 of either party by the President for the time being of the Institute
 of Chartered Accountants in England and Wales.

 (2) Subject as aforesaid any dispute difference or question
 arising between the parties hereto or any of them in regard to
 the construction or effect of any of the provisions contained in
 this agreement or in the schedule hereto shall be referred to a
 single arbitrator to be agreed between such parties or failing
 agreement to be nominated by the Minister of Transport on the
 application of either party.

 (3) Any reference to arbitration under this agreement shall
 be deemed to be a submission to arbitration within the meaning
 of the Arbitration Act 1889 or any statutory modification or
 re-enactment thereof for the time being in force the provisions
 whereof shall apply so far as applicable.

 In witness whereof the parties hereto have hereunto caused
 their respective common and corporate seals to be affixed the
 day and year first before written.

The SCHEDULE referred to in the foregoing Agreement.

PROVISIONS FOR SHARING NET PROFITS OF OMNIBUS
UNDERTAKING ON AND AFTER 1ST JANUARY 1956.

(1) In this schedule expressions defined by the agreement
shall have the same respective meanings and the following
expressions shall unless the context otherwise requires have the
following meanings namely :—

“The specified services” shall mean the services of
omnibuses for the time being and from time to time
operated by or on behalf of the Company within or

partly within the specified area or any part thereof except any service for the time being operated by the Company or on behalf of the Company on their own account under or pursuant to the provisions in that behalf in paragraphs (7) or (12) of this schedule; A.D. 1933.

“The specified routes” shall mean the routes along which the Company are for the time being operating the specified services;

“Share of net profits” shall mean a sum payable by the Company to either of the local authorities under either paragraph (2) or paragraph (9) of this schedule;

“The specified share” of any net profits shall mean the share specified in either paragraph (3) or paragraph (10) of this schedule.

PART I.—PROVISIONS APPLICABLE IF SERVICES OPERATED BY COMPANY.

(2) (i) The Company shall pay to each of the local authorities the specified share of the net profits calculated as hereinafter provided earned by such of the specified services (taken as a whole) as may from time to time during the continuance of the operation of this schedule be operated by the Company on the specified routes it being the intention that the said net profits shall be calculated and payable separately in respect of each of the boroughs or the services therein respectively.

(ii) For the purpose of this paragraph the net profits earned during any period by the specified services shall be deemed to be the total moneys received by the Company during such period upon the omnibuses from time to time operated upon such services for passenger fares and parcel receipts less the cost of working such services during the same period calculated as hereinafter provided.

(3) The share (payable under paragraph (2) of this schedule) of the net profits earned as therein mentioned in respect of the period from the 1st day of January 1956 to the 31st day of December 1975 shall be six-tenths and of the net profits earned as aforesaid in respect of the period from the 1st day of January 1976 to the 31st day of December 1995 shall be eleven-twentieths and of the net profits earned as aforesaid on or at any time after the 1st day of January 1996 one-half.

(4) (i) The cost of working any service during any period shall be calculated by multiplying the number of miles run by the omnibuses of the Company on such service (including the miles run by such omnibuses to and from their garage) by the average cost to the Company per omnibus mile of operating the whole of the

A.D. 1933. — services of motor omnibuses and other motor vehicles operated by the Company during such period both within and without the specified area as shown by the Company's half-yearly working accounts for such period together with an allowance for depreciation and interest on capital of threepence and one halfpenny for every mile run on such service (including the miles run by such omnibuses to and from their garage).

(ii) The length of each of the specified routes and the length of the portion or portions of each situate within each of the boroughs shall be agreed between the respective surveyors of the local authorities and the traffic manager of the Company or failing agreement shall be determined by arbitration in the manner provided by the agreement.

(5) (i) As soon as possible after the expiration of the half-year current at the date on which this schedule shall come into force and of each subsequent half-year during the continuance of the operation of this schedule the Company shall deliver to each of the local authorities an account (certified as correct by the traffic manager of the Company on the basis of the Company's half-yearly returns) showing the net profits calculated as hereinbefore provided earned by the services operated by the Company during the preceding half-year on or over any or any portions of the specified routes and the total amount payable to each of the local authorities in respect of such half-year under paragraphs (2) and (3) of this schedule. The amount shown to be due to either of the local authorities by any half-yearly account shall be paid by the Company on the presentation of such account.

(ii) The half-yearly accounts in respect of any year shall if necessary be adjusted on the closing of the Company's accounts as at the 31st December in each year upon the basis of the Company's audited accounts for such year.

(iii) As soon as practicable after the Company's accounts for any year shall have been audited the Company shall deliver to each of the local authorities an account certified by the Company's auditors showing the net profits calculated as hereinbefore provided earned by the services operated by the Company during such year on or over any or any portions of the specified routes and the total amount payable to each of the local authorities in respect of such year under paragraphs (2) and (3) of this schedule. The difference between the total amount payable to the corporation as aforesaid and the total of any sums paid to the corporation in respect of either of the preceding half-years shall on presentation of the account be paid by or to the Company to or by the corporation as the case may be.

(iv) Either of the local authorities may if they think fit direct their borough treasurer or other official or may employ a professional accountant or accountants to examine and check any account delivered by the Company as aforesaid and the

Company shall give to such treasurer or other official or accountant full and ample facilities to enable him to carry out such examination and checking accordingly Any question or dispute arising upon any account between either of the local authorities and the Company shall in default of agreement be determined by arbitration in manner provided by the agreement. A.D. 1933.
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(6) If and so long as any part or parts of the route of any services of the Company extending beyond the specified area shall be coincident with the whole or any part of the route along which any of the specified services may for the time being be operated the Company shall charge on such first-mentioned service such fares in respect of such part or parts as aforesaid of the route of the service as shall afford adequate protection to such of the specified services as may for the time being be operated along the same such fares to be agreed between the Company and the corporation of the borough in which such part or parts of the specified route shall be situate or in default of agreement fixed by arbitration in manner provided by the agreement.

(7) (i) The half-yearly accounts to be delivered by the Company to each of the local authorities as aforesaid shall show separately the length of and omnibus mileage run on each of the specified routes situate within or partly within their respective boroughs and the actual receipts of the omnibuses from time to time operated thereon during the half-year covered by such account.

(ii) If the local authorities or either of them shall be of opinion that such receipts do not justify the continuance of the service on any of the specified routes and the local authorities jointly or (in the case of a service on a route situate entirely within either of the boroughs) the corporation of such borough shall give one month's written notice to the Company to discontinue the service on such route then any service operated by the Company along such route shall subject as hereinafter provided cease to be a service operated by the Company under or pursuant to the provisions of this agreement.

(iii) The Company shall be entitled to operate or continue to operate a service over such route at their own risk and on their own account subject to the power of either of the local authorities at any time to require a service again to be operated upon such route or the part thereof within the borough by notice given pursuant to clause 10 (Additional routes) of the agreement.

(8) Notwithstanding anything in the agreement or in this schedule contained the provisions of this Part of this schedule shall only apply and have effect if the Company themselves operate the services of motor omnibuses required by the agreement.

A.D. 1933.

PART II.—PROVISIONS APPLICABLE IF SERVICES
OPERATED BY LESSEES.

(9) (i) The Company shall pay to the local authorities the specified share of the net profits calculated as hereinafter provided earned by the specified services (taken as a whole) as may from time to time during the continuance of the operation of this schedule be operated on behalf of the Company on the specified routes it being the intention that the said net profits shall be calculated and payable separately in respect of each of the boroughs.

(ii) For the purpose of this paragraph the net profits earned during any period by the services on the specified routes shall be deemed to be the net amount of the total moneys received by the Company from the lessees less any reasonable expenditure necessarily incurred by the Company in respect of establishment charges and management expenses in connection with their undertaking.

(10) The share of net profits shall (notwithstanding paragraph (8) of this schedule) be as prescribed by paragraph (3) of this schedule.

(11) (i) As soon as possible after the expiration of the half-year current at the date on which this schedule shall come into force and of each subsequent half-year during the continuance of this agreement the Company shall deliver to each of the local authorities a copy of the accounts and statements received by the Company from the lessees showing the amount payable in respect of that half-year to or by the Company by or to the lessees in respect of the services on the specified routes and a statement of the total amount payable to each of the local authorities in respect of such half-year under paragraph (10) of this schedule. The amount shown to be due to either of the local authorities by any half-yearly statement shall be paid by the Company on the presentation of such statement.

(ii) The half-yearly statements shall if necessary be adjusted as at the 31st day of December in each year and as soon as practicable after that date the Company shall deliver to each of the local authorities a statement showing the net profits earned during the year by the services on the specified routes and the total amounts payable to each of the local authorities in respect of that year.

(iii) The difference between the total amount payable to each corporation as aforesaid and the total sums paid to such corporation in respect of each of the preceding half-years shall on presentation of the statement be paid by or to the Company to or by the corporation concerned.

(iv) Either of the local authorities may if they think fit direct their borough treasurer or other official or may employ a professional accountant or accountants to examine and check any statement delivered by the Company showing the amount payable to each of the local authorities in respect of any half-year or year and the Company shall give to such treasurer or other official or accountant full and ample facilities to enable him to carry out such examination and checking accordingly. Any question or dispute arising upon any account between either of the local authorities and the Company shall in default of agreement be determined by arbitration in manner provided by the agreement. A.D. 1933.

(12) (i) The half-yearly accounts to be delivered by the Company to each of the local authorities as aforesaid shall show separately the omnibus mileage run on each of the specified routes situated within or partly within their respective boroughs and the actual receipts of the omnibuses from time to time operated thereon during the half-year covered by such account.

(ii) The length of each of the specified routes and the length of the portion or portions of each situate within each of the boroughs shall be agreed between the respective surveyors of the local authorities and the traffic manager of the Company or failing agreement shall be determined by arbitration in the manner provided by the agreement.

(iii) If the local authorities or either of them shall be of opinion that such receipts do not justify the continuance of the service on any of the specified routes and the local authorities jointly or (in the case of a service on a route situate entirely within either of the boroughs) the corporation of such borough shall give one month's written notice to the Company to discontinue the service on such route then any service operated by the Company along such route shall subject as hereinafter provided cease to be a service operated by the Company under or pursuant to the provisions of the agreement.

(iv) The Company shall be entitled to operate or continue to operate a service over such route at their own risk and on their own account subject to the power of either of the corporations at any time to require a service again to be operated upon such route or the part thereof within the borough by notice given pursuant to clause 10 (Additional routes) of the agreement.

(13) If and so long as any part or parts of the route of any services of the Company extending beyond the boroughs shall be coincident with the whole or any part of a route along which any of the specified services may for the time being be operated the Company shall charge on such first-mentioned service such fares in respect of such part or parts as aforesaid of the route of the service as shall afford adequate protection to such of the

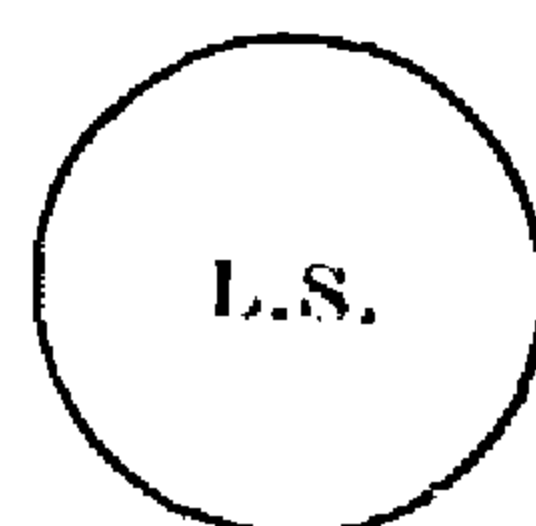
[Ch. xxvi.] *Dewsbury and* [23 & 24 GEO. 5.]
Ossett Passenger Transport Act, 1933.

A.D. 1933. — specified services as may for the time being be operated along the same such fares to be agreed between the Company and the corporation of the borough in which such part or parts of the specified route shall be situate or in default of agreement fixed by arbitration in manner provided by the agreement.

(14) Notwithstanding anything in the agreement or in this schedule contained the provisions of this Part of this schedule shall only apply and have effect if the omnibuses on the specified services are operated by lessees under the provisions of clause 18 (Working agreements) of the agreement.

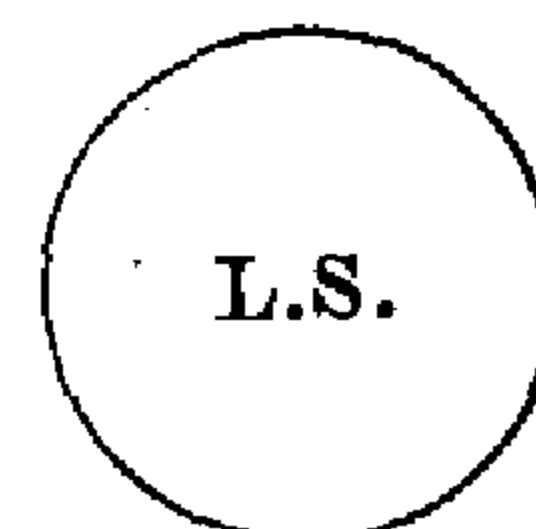
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LIMITED was hereunto affixed in
the presence of

H. C. DRAYTON }
F. E. STANLEY } Directors.
E. A. BOND Secretary.



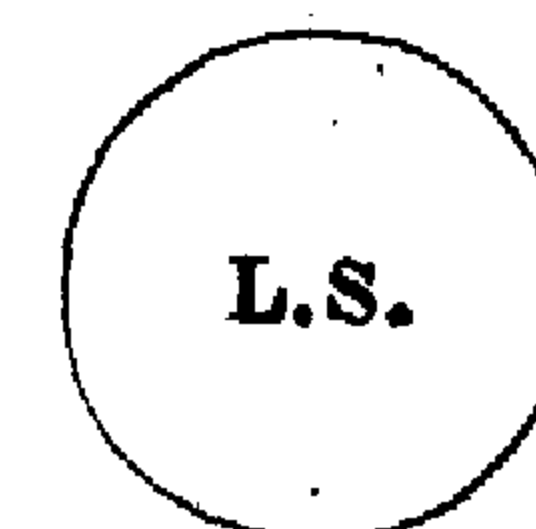
The corporate seal of the MAYOR
ALDERMEN AND BURGESSES of the
BOROUGH OF DEWSBURY was hereunto
affixed in the presence of

HY. SHAW Mayor.
HOLLAND BOOTH Town Clerk.



The corporate seal of the MAYOR
ALDERMEN AND BURGESSES of the
BOROUGH OF OSSETT was hereunto
affixed in the presence of

JOSEPH ILLINGWORTH Mayor.
T. W. WILSON Town Clerk.



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